

321.80954

P1

C2

AN INTRODUCTION TO **THE CONSTITUTION OF INDIA**

Fifth Edition

Prof. Emeritus Dr M V Pylee

National Research Professor and Padma Bhushan

Former Vice Chancellor, Cochin University



VIKAS® PUBLISHING HOUSE PVT LTD

Chapter 1

The Background

AUGUST 15, 1947 was a great day in the long and eventful history of our motherland. For, it was on that day that the two hundred-year old British rule of India was terminated and political authority was transferred to the representatives of the Indian people.

THE INDIAN INDEPENDENCE ACT OF 1947, passed by the British Parliament, paved the way for the transfer of power. That Act provided for the partition of the country and the consequent setting up of two independent Dominions, India and Pakistan. Under the Act, the Dominion of India got the whole of the territory of India excluding the Provinces of Sind, Baluchistan, North-west Frontier Province, West Punjab, East Bengal and the district of Sylhet in Assam. The Act had also provided that the Constituent Assembly of each Dominion would have unlimited power to frame and adopt any constitution and to repeal any Act of the British Parliament, including the Indian Independence Act.

Even before the emergence of the new Dominions, a Constituent Assembly had been set up on the basis of what is known as the British Cabinet Mission Plan of 1946, to draw up a new constitution for undivided India. It had its first sitting on December 9, 1946. It re-assembled on the evening of August 14, 1947, as the sovereign Constituent Assembly of the Dominion of India to take over power from the British. And on that historic day, August 15, at zero hour, the new

Dominion of India was born, restoring the political freedom of over three hundred million people constituting nearly one-sixth of the human race.

In a memorable speech on that occasion the Prime Minister of Independent India, Jawaharlal Nehru said:

"Long ago, we made a tryst with destiny and now the time comes when we shall redeem our pledge, not wholly or in full measure but very substantially. At the stroke of the midnight hour, when the world sleeps, India will awake to life and freedom. This is no time for petty and destructive criticism, no time for ill-will or blaming others. We have to build the noble mansion of free India where all her children may dwell".

The person who first conceived the idea of a Constituent Assembly for India was Mahatma Gandhi. It was as early as in 1922 and he elaborated his idea in the following manner: "Swaraj will not be a free gift of the British Parliament; it will be a declaration of India's full self-expression. That it will be expressed through an Act of Parliament is true but it will be merely a courteous ratification of the declared wish of the people of India".

In spite of this we do not come across any clear statement of the Indian National Congress which stood for 'Purna Swaraj' - complete independence - emphasising the need for a Constituent Assembly until 1935. As the principal spokesman of the Congress, Jawaharlal Nehru wrote in 1938: "The National Congress stands for independence and a democratic State. It has proposed that the constitution of a free India must be framed, without outside interference, by a Constituent Assembly elected on the basis of adult franchise. This is the democratic way and there is no other way short of revolution which can bring the needed result. An assembly so elected will represent the people as a whole and will be far more interested in the economic and social problems of the masses than in the petty communal issues which affect small groups. Thus it will solve without much difficulty the communal and other like problems".

The Impact of the Second World War

Until the Second World War, however, the British Government resisted India's demand for a Constituent Assembly. Even the plea of the Indian National Congress immediately after the outbreak of the war did not appear to influence them to change their policy. This was evident from their attitude to the statement issued by the Working Committee of the Congress on September 14, 1939, soon after the outbreak of the war. The statement said among other things:

"If Great Britain fights for the maintenance and extension of democracy, then she must necessarily end imperialism in her possessions and establish full democracy in India and the Indian people must have the right of self-determination by framing their own constitution through a Constituent Assembly. A free democratic India will gladly associate herself with other free nations for mutual defence against aggression".

Instead of reacting favourably and initiating discussions for an amicable settlement, the Government of India declared an emergency all over India and the administration of the whole country was concentrated in the hands of the Governor-General through the Governors and the Indian Civil Service. A series of new emergency Ordinances were passed to meet any opposition from the popular forces in the country. Most of the national leaders were arrested and sent to jail.

The Cripps Mission

Within the next two years, however, a dramatic change in the British attitude had taken place. This was due to two reasons. First, the British forces had suffered disastrous defeats in different theatres of war. Secondly, the international situation became so unfavourable to Britain with Japan almost at the doorstep of the Indian Empire, that she had to seek the support of the popular forces in India. With this end in view, Sir Stafford Cripps, a member of the British Government, was sent to India for a special mission for finding a "just and final"

solution of the Indian political problem.

The Cripps Mission envisaged complete transfer of power to Indians after the war, and partial transfer during the war. In return to this, Britain wanted the Indian leaders to support and work wholeheartedly for the prosecution of the war. The Indian National Congress declined the "Cripps Offer". It declared that the essential condition was the freedom of India without the realisation of which the hearts of millions of Indians could not be illuminated, nor could they be moved into action. Thus the Cripps Mission failed.

The Quit India Resolution

The failure of the Cripps Mission compelled the All India Congress Committee to reassess the situation in order to plan the future course of action. The Committee met at Bombay in August 1942, and after prolonged discussions, taking into consideration all aspects of the situation, adopted the famous "Quit India" Resolution for the immediate ending of the British rule in India. Gandhiji was the pilot who led the Congress Committee in adopting this resolution. Among other things, the Resolution said:

"...The Committee is of opinion that the immediate ending of British rule in India is an urgent necessity, both for the sake of India and for the success of the cause of the United Nations. The continuation of that rule is degrading and enfeebling India and making her progressively less capable of defending herself and of contributing to the cause of world freedom".

"The freedom of India must be the symbol of and the prelude to the freedom of all other Asian nations under foreign domination. Burma, Malaya, Indochina, the Dutch Indies, Iran and Iraq must also attain their complete freedom..."

The British Government in reply at once arrested all the Congress leaders and banned all Congress organisations throughout India. The arrest of the leaders provoked a widespread revolution in India, known as the AUGUST

REVOLUTION. The war-efforts of the Government were considerably hampered as a result of the revolutionary activities of large sections of the people. The August Revolution, however, was suppressed with an iron hand.

The Simla Conference

Victory for Britain and her allies came in Europe in May 1945. Three years had passed since the Cripps Mission. All this time, the national leaders were in jail. In June 1945, the Governor-General announced the release of the Congress leaders as a preparatory measure for negotiations with them. A conference was called, soon after, at Simla in which all the leading political parties participated. But it could not arrive at any agreed solution. Immediately after this, Lord Wavell, the then Governor-General, visited England where there had been taken place momentous political changes due to the defeat of the Conservative Party in the general elections and the formation of the Labour government. On his return to India in September 1945, Lord Wavell announced the determination of the British government to go ahead with the hope of bringing India to self-government speedily.

Parliamentary Delegation

In February 1946, the British Prime Minister, Clement Atlee announced in the House of Commons that a Parliamentary Delegation would visit India with a view to meeting the national leaders and discuss the various problems connected with self-government in India. The Delegation, consisting of members of Parliament belonging to all important parties, visited India soon after and spent over four weeks in the country. This paved the way for further progress in Indo-British understanding regarding India's constitutional problem. By this time, the Labour government was convinced of the imperative necessity to grant India complete independence. It was a consequence of that conviction that Prime Minister Atlee declared in the House of Commons on March 14, 1945

that while he hoped that the Indian people might elect to remain in the Commonwealth, they had a right to elect for independence. He recognised the obligation of Britain to help to make the transition as smooth and easy as possible. To translate this promise into reality a Cabinet Mission was sent to India immediately following the above announcement.

Proposals of the Cabinet Mission

The Cabinet Mission consisted of three members of the British Government—Sir Stafford Cripps, Lord Pethick Lawrence and Mr. A.V. Alexander. From the third week of March to the Middle of June 1945 the three British Ministers had a series of conferences with all the important political leaders of India representing every important party. Towards the end of their stay in India they announced their plan regarding the future political set-up of India, known as the Cabinet Mission Plan. The Plan, while rejecting the demand of the All India Muslim League for partition of the country and establishment of a fully sovereign Pakistan, envisaged a confederation consisting of three groups of autonomous states vesting the powers of the three departments—Defence, External Affairs and Communications—in a Central Government and all the remaining powers with the groups themselves. Each of the groups was free to have a separate constitution of its own choice, thus giving ample scope for both the leading religious groups, Hindus and Muslims, to live unitedly but, at the same time, to enjoy complete autonomy in areas where they were in a majority. The Plan had two parts, namely, a long-term programme and a short-term one. While the former was concerned with the future political set-up on a permanent basis, the latter was intended to establish an immediate Indian interim Government.

The Muslim League accepted both parts of the Plan while the Indian National Congress decided that it would unreservedly accept only the long-term programme. As a result, later on, the Muslim League rejected the Plan as a

whole and declared that it would resort to direct action to achieve its own demands. Meanwhile, elections in the British Indian Provinces were completed and the Provincial autonomy scheme of the Constitution Act of 1935 was given effect to by forming popular Ministries in all the Provinces. But the question of forming an interim Cabinet at the Centre still remained unsolved. As a temporary measure, a Caretaker Government of senior Civil Service officials was formed by the Governor-General towards the end of June 1946.

Formation of the Interim Government

While Lord Wavell was exploring the possibilities of bringing the rival parties to some agreement, the announcement of the Muslim League to start direct action had serious and far-reaching repercussions all over India. Communal tension was mounting up day after day, resulting in the outbreak of communal disturbances, starting first at Bombay on July 1, 1946, and spreading to other parts like a violent conflagration. On August 12, 1946, Lord Wavell invited Pandit Jawaharlal Nehru to consider proposals for the formation of an interim Government at the Centre. The discussions bore fruit in the form of the interim Government coming into being on the 2nd of September.

But in the meantime, resort to direct action by the Muslim League had already resulted in widespread communal disturbances of a magnitude unprecedented in India. Even the Muslim League nominees joining the interim Government, a few weeks later, did not bring the situation to normalcy.

The Mountbatten Plan

It was felt all over the country and in England that events in India were moving so fast and in so dangerous a direction that a catastrophe was imminent if immediate action was not forthcoming. The British Government thought that Lord Wavell was not equal to the situation and, therefore, they appointed Lord Louis Mountbatten to succeed him as the

Governor-General. On February 20, 1947, the British Government made a historic announcement declaring their intention to transfer power to responsible Indian hands not later than June 1948. Lord Mountbatten, immediately after assumption of office, plunged himself into prolonged negotiations with party leaders. He found that the only solution to bring to an end the orgy of communal violence and bloodshed lay in the immediate transfer of power to Indian hands. With a view to facilitating this transfer, and at the same time to accommodate the rival claims of the two leading communities, he devised the plan of partition of the country into India and Pakistan. It was according to this Plan that the Punjab and the Bengal Provinces were partitioned between the two new nations.

The Indian Independence Act, 1947

The Mountbatten Plan was finally accepted by the two leading parties in India and also the British government. The decision to effect the transfer of power earlier than June 1948, was announced in the British Parliament in June 1947. Accordingly, the Indian Independence Act was passed providing for the setting up of a Dominion of India and a Dominion of Pakistan on August 15, 1947. Thus on August 15, as was mentioned earlier, power was transferred to Indian hands; and August 15 has ever since become India's INDEPENDENCE DAY.

Position of the Indian States

When the British left India in August 1947, politically India was divided between British India and Indian India. The former consisted of nine Governors' Provinces, five Chief Commissioners' Provinces and certain other areas like the tribal areas, the frontier regions and the Andaman and Nicobar Islands. The latter consisted of over 500 Indian States. Of these, over a hundred were major States. They included States like Hyderabad, Kashmir, Mysore, Travancore and

Baroda. Barring a few exceptions, the Governments of these States were autocratic. Some of them resembled the feudal principalities of medieval Europe. A large number of them could not be really called States as they were too small in size and too poor in resources. Yet they all became "sovereign" States on the 15th of August 1947, as the paramountcy of the British Crown over them lapsed on that date. According to the British Prime Minister, these States were completely independent and were free to join either of the two Dominions, India or Pakistan, as they chose.

It was inconceivable of these States remaining separate, independent entities. Their choice lay in joining and becoming an integral part of either of the two new Dominions. Geographical and political considerations had much to do with their choice. The wishes of the people of these States also had great influence in deciding this issue. Except for a few which acceded to Pakistan, all the Indian States joined the Dominion of India and helped in the unification of the country for the first time in several hundred years.

Accession of the States and Territorial Readjustment

The accession of these States to the Indian Dominion set in motion a new movement for territorial readjustment. It was a two-fold operation, INTEGRATION and MERGER. By the process of integration two or more States joined together to form one viable administrative unit. Such States as Rajasthan, Travancore-Cochin and Saurashtra of the Indian Union of 1950 are the result of the process of integration. By the process of merger, many small States merged themselves in the neighbouring Provinces to become their integral parts. The merger of Seraikella and Kasravan States in Bihar, Orissa Feudatory States in Orissa and Pudukkottah in Madras are examples of this.

The process of integration and merger had remarkably good results. First, the number of State units in the Indian Union was brought to sixteen from about six hundred. Of

these sixteen, nine were called PART B STATES under the original Constitution in 1950 and the remaining seven as PART C STATES. Secondly, the process helped the introduction of representative and responsible governments in these areas. Thirdly, even though India had been partitioned into India and Pakistan, the new India became a well-knit Union providing for the formation of a federal constitution with a strong Central Government. This magnificent achievement was the result of the vision and constructive statesmanship of Sardar Vallabhbhai Patel who had been one of the chief architects of Republican India.

Decision to Become a Republic

India did not remain a Dominion of the British Commonwealth of Nations for long. The Constituent Assembly decided in May 1949, that India should become a Republic. It was also decided that she should continue to remain a member of the COMMONWEALTH OF NATIONS (no more British Commonwealth) and recognise the monarch of England as the symbolic head of the Commonwealth. It is interesting to note that this decision is not embodied in the Republican Constitution of India but rests merely on an understanding between India and other members of the Commonwealth.

The Constituent Assembly

As was mentioned earlier, even before the complete transfer of power that was effected by the Indian Independence Act, 1947, a CONSTITUENT ASSEMBLY had been set up in order to draw up the new Constitution of India. This was done on the basis of the agreement between the Cabinet Mission and the major Indian political parties in 1946. It was also decided that elections to the proposed Constituent Assembly should be indirect, so that all possible delay in the convening of the Assembly should be avoided.

Accordingly, members to the Assembly were elected by the elected members of the Legislative Assemblies of the Provinces.

A total of 292 seats were allotted to the British Indian Provinces and 93 seats, in addition, were set apart for the Indian States' representatives in the Assembly. Thus, the total membership of the Constituent Assembly was 385. It was this body that was entrusted with the task of framing the Constitution.

At the time it was first convened in December 1946, the Constituent Assembly was not a sovereign body. This was because it was subject to the final authority of the British Parliament. But the Indian Independence Act of 1947, as was pointed out earlier, brought about a complete change in its character and made it a sovereign body.

The members of the Constituent Assembly were not selected purely on party basis, but were drawn from all walks of life. Indeed they represented almost every section of the Indian people. They included some of the most leading personalities of Indian public life. The moving spirit of the Assembly was Jawaharlal Nehru, the first Prime Minister of free India. Dr. Rajendra Prasad was its President. Vallabhbhai Patel was one of the most important among the leading lights. While these leaders had contributed more than all others for the formulation of the basic principles of the Constitution, it was the Drafting Committee, headed by Dr. B.R. Ambedkar which was in charge of its drafting. Ambedkar was ably assisted by the other members of the Drafting Committee among whom Alladi Krishnaswami Aiyar, N. Gopalaswami Iyengar, K.M. Munshi and T.T. Krishnamachari were the most prominent. The Committee was assisted by the Constitutional Adviser to the Assembly, B.N. Rau, a distinguished jurist.

It took two years, eleven months and seventeen days for the Constituent Assembly to finalise the work since its first meeting on December 9, 1946.

In the final form, the Constitution was passed and adopted by the Constituent Assembly on November 26, 1949.

However, the Constitution was inaugurated only on January 26, 1950 which was the twentieth anniversary of the day on which the Indian National Congress adopted the Resolution on Purna Swaraj (complete independence). This day has ever since become the **REPUBLIC DAY OF INDIA**.